

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION MODIFYING THE CONDITIONS OF APPROVAL OF RESOLUTION NO. 6424, FOR AN OUTSIDE USER AGREEMENT FOR WATER SERVICE FOR OH HAIL NO LLC, FOR LAND LOCATED SOUTH OF HIGH PLAINS ROAD AND WEST OF SOUTH GREELEY HIGHWAY, BETWEEN ROBERT AVENUE AND DAYSHIA LANE.”

WHEREAS, Oh Hail No LLC is the owner of a property in Laramie County, Wyoming, more specifically described as:

13-66: A PARCEL OF LAND SITUATE IN THE NORTH 1/2 OF SEC 29, DESC AS: BEG AT A POINT, MONUMENTED WITH A 2” BRASS CAP, ON THE WEST R/W LINE OF US HWY 85, SAID POINT BEING COINCIDENT WITH THE NORTHEAST CORNER OF TRACT 90, BISON CROSSING, 4TH FILING, AND WHICH POINT BEARS S.50 DEG 30’57”E. FROM THE NORTHWEST CORNER OF SAID SEC 29, 3,614.10’; TH N.89 DEG 23’00”W., ALONG THE NORTH LINE OF SAID BISON CROSSING SUBDIVISION, 4TH FILING, 503.26’ TO THE EAST LINE OF THAT PARCEL DESCRIBED IN BOOK 2622, PAGE 1228; TH N.00 DEG 37’36”W., ALONG SAID EAST LINE, 926.69’ TO THE NORTH LINE OF THAT PARCEL DESCRIBED IN BOOK 2622, PAGE 1228; TH N.82 DEG 21’13”W., ALONG SAID NORTH LINE, 40.01’ TO THE SOUTHEAST CORNER OF TRACT 4, CATHCART SUBDIVISION; TH N.00 DEG 34’08”W., ALONG THE EAST LINE OF SAID TRACT 4, 279.95’ TO THE SOUTH R/W LINE OF ROBERT AVENUE; TH S.89 DEG 24’51”E., ALONG SAID SOUTH LINE, 80.02’ TO A THE NORTHWEST COMER OF TRACT 3, CATHCART SUBDIVISION; TH S.00 DEG 34’08”E., ALONG THE WEST LINE OF SAID TRACT 3, 289.88’ TO THE SOUTHWEST CORNER OF SAID TRACT 3; TH S.89 DEG 24’46”E., ALONG THE SOUTH LINE OF SAID TRACT 3, 427.47’ TO THE WEST R/W LINE OF US HWY 85; TH S.02 DEG 50’46”E., ALONG SAID WEST LINE, 923.43’ TO THE POB.

WHEREAS, the Governing Body previously reviewed the application for water services submitted by the Applicant, determined that approval was in the best interest of the City of Cheyenne, and adopted Resolution No. 6424, approving the Outside User Agreement subject to the following conditions: “1. the proposed development shall comply with City Standards, or applicable City relief processes; and, 2. the property owner initiates annexation pursuant to Wyo. Stat. § 15-1-403 within one hundred and eighty (180) days of approval of this resolution;”

WHEREAS, the Applicant’s development program has changed resulting in the inability to meet the conditions of approval; and

WHEREAS, the Applicant wishes to extend the approval subject to the following conditions: 1. Any development of the land shall comply with City development standards, and relief to those standards may be sought via applicable procedures for relief (e.g. Administrative Adjustment, Variance, etc.); and 2. The property owner shall initiate annexation of the property

and adjacent rights-of-way pursuant to Wyo. Stat. § 15-1-403 within eighteen (18) months of approval of this resolution unless an extension is mutually agreed upon by the applicant and the Governing Body.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that Resolution No. 6424 adopted on September 9, 2024, to allow water services outside of the corporate limits of the City of Cheyenne is hereby modified to only include the following conditions:

1. Any development of the land shall comply with City development standards and relief to those standards may be sought via applicable procedures for relief; and
2. The property owner shall initiate annexation of the property and adjacent rights-of-way pursuant to Wyo. Stat. § 15-1-403 within eighteen (18) months of approval of this Resolution unless an extension is mutually agreed upon by the applicant and the Governing Body.

BE IT FURTHER RESOLVED, that the Cheyenne Board of Public Utilities (BOPU) and the Applicant are authorized to approve and execute Outside User Agreement(s), subject to the conditions imposed by the Governing Body.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk